

25STCV34190 25STCV34190

County: los-angeles
Division: Civil Law and Motion
Department: 506
Hearing date: 2026-07-28
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Case Number: 25STCV34190 Hearing Date: July 28, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

ROY EDWARD THOMAS,

Plaintiff,

vs.

SERRANO HEALTHCARE, LLC, et al.,

Defendants.

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CASE NO.: 25STCV34190

[TENTATIVE] ORDER GRANTING MOTIONS TO COMPEL
DISCOVERY RESPONSES AND TO DEEM RFAs ADMITTED

Dept. 506

8:30 a.m.

July 28, 2026

Plaintiff

Roy Edward Thomas has served Form Interrogatories – General (Set One), Special Interrogatories (Set One), Request for Production of Documents (Set One), and Request for Admission (Set One). Defendants Serrano Healthcare LLC and IHCM Management LLC never served responses.

On

June 5, 2026, Plaintiff filed motions to compel responses and motions to deem the RFAs admitted. Defendants did not file any oppositions.

Where

a party fails to serve timely responses to discovery requests, the court may make an order compelling responses. (Code Civ. Proc., §§ 2030.290 [interrogatories], 2031.300 [documents]; Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 403.) A party that fails to serve timely responses waives any objections to the request, including ones based on privilege or the protection of attorney work product. (Code Civ. Proc., §§ 2030.290, subd. (a), 2031.300, subd. (a).)

When

a party fails to timely respond to a request for admission, the propounding party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted. (Code Civ. Proc., § 2033.280, subd. (b).) The party who failed to respond waives any objections

to the demand, unless the court grants them relief from the waiver, upon a showing that the party (1) has subsequently served a substantially compliant response, and (2) that the party's failure to respond was the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc., § 2033.280, subds. (a)(1)-(2).) The court shall grant a motion to deem admitted requests for admissions, "unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." (Code Civ. Proc., § 2033.280, subd. (c).)

Defendants

filed no oppositions to these motions and did not serve timely responses. It does not appear that Defendants served substantially

compliant responses prior to the hearing.

Accordingly,

the motions are GRANTED.

Serrano

Healthcare LLC is ordered to provide verified responses, without objections, to Form Interrogatories – General (Set One), Special Interrogatories (Set One), and Request for Production of Documents (Set One) within 30 days.

IHCM

Management LLC is ordered to provide verified responses, without objections, to Form Interrogatories – General (Set One), Special Interrogatories (Set One), and Request for Production of Documents (Set One) within 30 days.

Request

for Admission (Set One) is deemed admitted by Serrano Healthcare LLC.

Request

for Admission (Set One) is deemed admitted by IHCM Management LLC.

Moving

party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at

indicating intention to submit. If all parties

in the case submit on the tentative ruling, no appearances before the Court are

required unless a companion hearing (for example, a Case Management Conference)

is also on calendar.

Dated this 28th day of July 2026

Hon. Thomas D. Long

Judge of the Superior

Court